SIKHULILE MAZIBUKO
versus
EDGARS STORES LTD

HIGH COURT OF ZIMBABWE
DUBE JP
HARARE, 22 January 2026 & 02 July 2026

Court Application

N.V Moyo, for the applicant
F Mahere, for the respondent

DUBE JP:

[1] This application brought in terms of rule 27 of the High Court Rules 2021, seeks rescission of default judgment granted under HCH 2703/24.

[2] The respondent instituted summons against the applicant, its senior footwear buyer and Sibusiso Khumalo for payment of ZAR 1 450 242.39. The allegations are that the two, without its knowledge and authority acted in concert in engaging two entities to supply footwear merchandise and disbursed huge sums of money without carrying out any due diligence on them, resulting in loss occurring to it. The applicant failed to attend a pretrial conference hearing [PTC], resulting in default judgment being granted unopposed against him. It is this default judgment that he seeks rescission of.

[3] At the hearing of the matter, the respondent raised points *in limine*. The respondent questioned documents annexed to the answering affidavit arguing that they constitute new evidence and ought to have been annexed to the founding affidavit instead. Counsel for the respondent *F Mahere*, submitted that the applicant failed to set out fully his case in the founding affidavit seeking to bolster it by annexing to his answering affidavit evidentiary documents. He moved the court to expunge all the documents annexed to the answering affidavit arguing that they cause prejudice to it as it no longer has the opportunity to address them. In addition, he submitted that the WhatsApp chats between the applicant and his erstwhile legal practitioner are not in the official language and ought to be struck out. The annexure of a "without prejudice" email was attacked on the basis that it is privileged from production and inadmissible.

[4] According to the applicant, no new evidence has been introduced. Through his counsel, Ms *Moyo,* he maintained that the documents impugned seek to address allegations that were raised in the respondent's notice of opposition which suggest that he was in willful default and that his case lacks merit necessitating him to deal with the allegations in his answering affidavit. The applicant did not respond to challenges related to the propriety of documents purported to be in a non-official language nor the letter written without prejudice. Following argument, the parties resolved that should the court dismiss the points *in limine*, it proceed to consider the merits of the application on the papers whereupon the court reserved judgment.

[5] The applicant attributes the default to his erstwhile legal practitioner. His explanation for the default is that he had prepared for court with Mr Mpofu but he did not turn up for the PTC. He genuinely believed that his erstwhile legal practitioner, practiced with Messrs Samp Mulaudzi Legal Practitioners, had been diligently attending to the matter and was to attend the PTC on his behalf on 28 July 2025. He only discovered after he failed to attend the PTC that he was no longer practicing and faced disciplinary action with the Law Society of Zimbabwe. By that time, it was too late for him to get verified on the Integrated Case Management System [IECMS], log in personally or engage the services of another legal practitioner. He maintained that his default was not wilful, deliberate or intended to disrespect the court as his non-attendance arose due to circumstances beyond his control and that he is keen on pursuing his defence. The applicant averred further that he has a *bona fide* defence on the merits of the summons matter insisting that his defence raises triable issues with reasonable prospects of success and maintained that he has shown good and sufficient cause for rescission of judgment.

[6] According to the respondent, the applicant showed a disdain and pattern of disrespect for court processes as revealed by his failure to attend a case management hearing set down for 6 June 2025, resorting to sending an email to the respondent's counsel stating that he was struggling to get hold of his counsel and requesting that the hearing be deferred. With respect to the default of 28 July 2025, it averred that despite that the applicant was advised that the matter would in due course be set down for a PTC, had a month to find alternative counsel, he failed to do so and to file pretrial conference papers ahead of the hearing. It attacked the assertion that applicant's erstwhile legal practitioner was no longer in practice there being no confirmation from the Law Society of Zimbabwe in writing. It insisted that the applicant was aware of the hearing, elected to stay away and showed no interest in attending the hearing thereby

giving up his right to be heard and was in wilful default. It argued that the applicant could have travelled for the hearing or looked for alternative counsel to prosecute the matter. It attacked the applicant's failure to advise the respondent's counsel why he and his legal practitioner could not attend the PTC hearing. In addition, it contended that his explanation that he could not log onto the IECMS lacks merit, the hearing being physical.

[7] In respect of the merits of the summons matter, the respondent contended that the applicant failed to ensure that its stock management procedures for procuring merchandise from suppliers were followed before he engaged suppliers thereby causing financial prejudice to it. It argued that the applicant has no arguable case and has failed to show good and sufficient cause for rescission of default judgment.

Admission of a "without prejudice" letter

[8] Attached to the answering affidavit is Annex Z3, an email to a third-party counsel written by *F. Mahere* marked "*without prejudice*". The letter discusses possible resolution of the matter and is privileged. Without prejudice communications protect and promote *bona fide* settlement negotiations and allow parties to discuss settlements freely without fear of revelation on the understanding that the communications will not be used against them in future without approval and from being used in evidence in subsequent proceedings. Introducing a without prejudice communication into evidence without consent of the other party amounts to procedural breach, see *Enterprises Swanepoel S.A* v *Rhine Sports Investments (Pvt) Ltd* HH-169-18.

[9] What complicates the email dated 15 May 2025 is that it is privileged communication and ought not to have been annexed to the answering affidavit without the consent of the respondent. Another limitation is that the applicant did not explain in his answering affidavit why the without prejudice letter was attached. A document attached to an affidavit as evidence must be properly attached in the sense that it is cross referenced or incorporated within the body of the affidavit and contextually set out, See *Rio Gold (Pvt) Ltd* v *Falcon Gold Zimbabwe Ltd & Anor* HH-258-21.The facts derived from the annexure must be outlined in the affidavit with a clear connection between the documentary evidence and the averments made therein. The affidavit must speak to and adequately identify and explain the relevant portions of annexures relied on and their significance. Judges should not be expected to plough through heaps of papers in order to make out a litigant's case or work out which

part of the document a litigant relies on. The opponent, on the other hand must be well clear what case he is required to meet. This principle was well enunciated in *Swissborough Diamond Mines (Pty) Ltd* v *Government of the Republic of South Africa* 1999(2)SA 279(T) as follows:

> "Regard being had to the function of affidavits, it is not open to an applicant or a respondent to merely annexe [*sic*]to its affidavit documentation and to request the Court to have regard to it. What is required is the identification of the portions thereof on which reliance is placed and an indication of the case which is sought to be made out on the strength thereof. If this were not so the essence of our established practice would be destroyed . A party would not know what case must be met."

An affidavit that does not speak to documentary evidence attached to it is fatal to that part of the case obliging the court to disregard the facts contained therein. The relevance of annex Z3 not having been explained in the answering affidavit leaves the court surmising on it. Consequently, annex Z3, is expunged from the record.

Admissibility of documents with Ndebele words and expressions

[11] Annexed to the answering affidavit are WhatsApp chats related to the explanation for the default as well as the merits of the main matter. The WhatsApp chats pose a myriad of issues, the first being whether the WhatsApp chats comply with the provisions of s49 of the High Court Act, [*Chapter 7:06*], the Act. Section 49 of the Act dictates as follows:

> **"49 Proceedings in open court and in English**
> Save as is otherwise provided in rules of court or in any other enactment, all proceedings in the High Court shall be carried on in open court and the pleadings and proceedings thereof shall be in the English language.''

12] Section 49 dictates that all proceedings in the High Court shall be carried out in open court unless the rules or any other enactment provides otherwise. In addition, that all pleadings shall be in the English language, the official language of court proceedings in Zimbabwe.The provisions of s49 of the Act are peremptory rendering documents failing to meet the requirement inadmissible. The legislature deliberately used the phrase, "shall be in the English language" which command is peremptory. The provision leaves no room for the court to exercise any discretion as regards use of the language of record.

[13] Nonetheless, use of a foreign or local language in a document does not render the document automatically inadmissible. Documentary evidence is created by the parties and third parties before

proceedings are instituted and used in support of one's case in any language. Documentary evidence that uses any of the local languages remains valid evidence. Where documentary evidence is written in a local or foreign language and is to be used in court proceedings, it must be translated into the language of record in terms of s17 of the Civil Evidence Act [*Chapter 8:01*], for it to be intelligible to the judicial officer and the parties. Any pleading or document written and presented in any foreign or local language and filed in the High Court without a translation violates the language requirements of the court and is liable to be struck out or disregarded.

[14] In *S* v *Mlauzi* HH-100-23, the court held a WhatsApp text in Shona to have been irregularly admitted albeit in the magistrates court and remarked thus:

> "The exhibit is in the Shona language. The official language in proceedings before the magistrates court is English. Since the exhibit was not translated into the English Language, we also exclude that piece of evidence in determining the appeal." See also *Anderson Manja & Ors* v *Sheriff of Zimbabwe* SC- 09-21.

[15] The requirement for translation is to be adhered to strictly. Even where documentary evidence is written partly in an unofficial language or has a few unofficial words infused into it, courts apply strictly the requirement for translation of the documents insisting that the portions or words be translated into English. This approach was endorsed in *Stand Fife Four Nought (Pvt) Ltd* v *Salzman ET CIE SA* SC 30/16, where a document in English had a small part in a foreign language after the name *Salzman ET CIE SA.* The court said the following:

> "English is the language through which proceedings are conducted. Evidence should be presented in English. If a witness uses a language other than English his evidence should be led through an interpreter who understands that language and is able to interpret it into the English language. This also applies to documentary evidence presented in a foreign language. An interpreter must translate it into the English language."

[16] The court is obligated to obey the peremptory provisions of s49 of the Act. Until the legislature amends the law to introduce judicial discretion, the provisions of s49 ought to be strictly adhered to. All the WhatsApp chats save for annex R3 which is exclusively in English have infusions of Ndebele words and expressions. The applicant switches from English to Ndebele during conversations. Annexures R1, R2 and S are infused with Ndebele words "*Bafo"*and "*bhudhi"* and *"Yazi"*. Annexures U1, U2, U3 and U4 reveal switches between English and Ndebele conversations.

As a result, Annexures R1, R2 U1, U2, S, U3 and U4 do not have translated versions and are not admissible in the form in which they are. The point succeeds.

[17] The WhatsApp texts are afflicted by yet other problems. Some of the texts are not correctly marked and their relevance not explained. The applicant made reference to a WhatsApp chat marked annex R in paragraph 4 of his answering affidavit in support of the proposition that he was trying to frantically get hold of his legal practitioner to attend court. There is no annex R in particular and it is not clear which annexure is referred to here. The presented annexures marked R1 to R3 and U1 to U4 are not specifically incorporated, explained and contextualized in the answering affidavit to which they are annexed. The conclusions sought to be drawn from the WhatsApp chats were not canvassed and are therefore not known.

[18] The respondent also fell into the same error of annexing documents to its opposing affidavit and failing to label them correctly. Some of the respondent's annexures are not marked at and there are no annexures D to H1 referenced in the index to the notice of opposition. The court finds itself in the unfortunate position where it has to plough through documents, identify and make up what they are and their significance. The court registers its displeasure concerning the manner in which annexing of documentary evidence was done by both parties in this matter. The practice of lumping up documents without properly labelling them and attaching them to affidavits unexplained ought to be discouraged. In future such an approach will attract sanctions. The court will not hesitate to penalize offending parties with costs orders, disregard the offending annexures or strike them off the record.

[19] The respondent attacked annex V on the basis that only a portion of the agreement relied on was annexed to the answering affidavit contending that the entire agreement should have come attached to the founding affidavit instead and further that it raises new evidence. It is desirable that entire documents relied on are attached as annexures to avoid them being taken out of context. Nevertheless, selected extracts of documentary evidence are permissible in the case of voluminous documents or where portions of the document are privileged provided the source document is identified, explained and the extracted portion makes sense on its own and is not misleading.

[20] A litigant who attaches only a portion of a document as evidence must be prepared to produce the entire document for inspection by the court and the opposing party on request. It is prudent in such a case, to alert the court in the affidavit to the fact that the attachment is an extract from an

identified document and indicate the reason why the entire document has not been attached. It should also be indicated that the complete document is available and will be tendered on request or at the hearing of the matter.

[21] Annexure V is an extract or portion from the last page of an agreement signed between the respondent and Turkza. The applicant underlined that Edgars has the original packs for each supplier showing that the agreement is available for inspection and is at the respondent's disposal. The respondent did not dispute that it has a copy of the agreement. No useful purpose is served by annexing an entire agreement where what requires to be shown is simply that the respondent signed an agreement with one of the suppliers. The point fails.

Do the documents attached to the answering affidavit introduce new evidence

[22] The next enquiry is whether the remaining annexures introduce new evidence. Rule 59 (10) of the High Court Rules 2021, makes provision for filing of answering affidavits and stipulates that where a respondent has filed a notice of opposition and an opposing affidavit, the applicant has an entitlement to file an answering affidavit which may be accompanied by supporting affidavits. The High Court Rules do not define the purpose of an answering affidavit leaving this responsibility to precedent. In *Loveness Serengedo* v *Eric Cable* HH-32-2008, the court defined the purpose of an answering affidavit as follows:

> "In my view, the purpose of an answering affidavit is akin to that of a replication in an action. It is filed not merely for the form but to specifically meet and traverse all the averments made in the opposing affidavit that have the effect of defeating the applicant's claim. Like in any pleading filed with the court, all issues that are not specifically denied and traversed in the answering affidavit are to be taken as if they have been admitted. It is my further view that answering affidavits, like all other affidavits, must be drafted with precision and must meet the sting of the defence being raised in the opposing affidavit."

[23] The subject of admissibility of averments made in an answering affidavit is centered on the principle that an applicant must set out fully his or her or its case in the founding affidavit, the standing rule being that an application stands or falls by its founding affidavit and the facts alleged therein. An answering affidavit is an answer to the respondent's version and must be confined to answering points raised in the opposing affidavit. It provides an opportunity for an applicant to reply, clarify, rebut inaccurate statements and ambiguities in the opposing affidavit and correct them. In addition, the answering affidavit allows an applicant to address additional allegations or facts

made by an opponent for the first time in an opposing affidavit, which the applicant did not anticipate at the outset. An applicant is also in the same affidavit permitted to provide further context concerning the respondent's version of events.

[24] An answering affidavit and its annexures must not introduce new causes of action or new evidence nor should it be regarded as an opportunity to bolster a badly crafted founding affidavit or to patch up holes in evidence already before the court. If the evidence was available to the applicant at the time the claim was instituted and it is shown that he or she or it was aware that it was essential to the claim, the evidence will likely be disregarded or struck off the record. See *Hitumen* v *Hitumen* 2008 (2) ZLR 296 (H); *Chiangwa & Ors* v *AFM in Zimbabwe* SC-67-21, *Mangia* v *Ziumbe NO and Another* 2000 (2) ZLR 489: *Mobile Zimbabwe (Pvt) Ltd* v *Travel Forum (Pvt) Ltd* 1990 (1) ZLR 67 (H) at p70 and *Muchini* v *Adams* S-47-13.

[25] A respondent has no automatic right to file a supplementary affidavit in response to the new evidence which can only be done with the leave of court where the respondent stands to suffer prejudice if the opportunity to respond to the new evidence is not afforded, see *Passenger Rail Agency of South Africa* v *Swifambo Rail Agency (Pty*) 2016(6) SA 223; *Shepherd* v *Tuckers Land and Development Corporation (Pty*) 1978(1) SA. A supplementary affidavit will be allowed where the new evidence is vital for the resolution of the dispute between the parties in which case the court may decide to allow it to stand and allow the other party to file a supplementary affidavit thereby curing the prejudice likely to be suffered. Courts have wide discretionary powers to either allow or strike off the record documents that introduce new evidence after considering the reasons the new evidence was introduced and how its introduction affects fairness. Courts prefer a practical, common-sense approach than a technical one and focus on ensuring that all relevant facts needed to resolve the dispute are placed before the court.

[26] In paragraphs 49 to 56 of the opposing affidavit the respondent averred that the applicant failed to ensure that its stock management procedures for procuring merchandise from suppliers were followed before engaging suppliers. In answer, the applicant maintained that the respondent failed to specify the procedures not correctly followed. He outlined the procedure for procurement of merchandise. Annexure V was attached to show that "every level of the Jet chain signed off on the pack" in respect of the agreement for procurement of merchandise from Turkza Trading (Pvt) Ltd.

He contended that the merchandise executive signed on the boarding packs and that this amounts to authorising the supplier to be onboarded into the Edgars supplier data base. Annex V serves as clarification of the procedure for procurement of merchandise.

[27] Annex W is an email from Peter Mnyama, the merchandise executive of the respondent to Vusa Mpofu which the applicant says acknowledges that the respondent had orders with Cool Cosmos and explains the respondent's delay in paying and taking the balance of some stocks. Additional emails under X1, X2 and X3 were attached to show that authority was granted to Cool Cosmos by the respondent to use the inhouse brand for Turkza. Annex Y, is an email from Mr Mnyama to the CFO which the applicant averred requested expediency of registration of Turkza.

[28] Annex Z is an import payment list erroneously referred to as annex Z1 in the affidavit. In para 28 of the affidavit the applicant says that Turkza supplied part of the order and the respondent failed to pay for it in full resulting in the supplier not delivering the whole order. The document was attached to show a commitment by the respondent to pay Turkza a stated amount and that the transaction was formalised. Annex Z2 shows invoices to the tune of R646 800 for Cool Cosmos which Mr Mnyama is said to have signed for. The applicant contended that the respondent received more than two thirds of the goods which it sold. It serves to rebut the claim that the respondent was unaware of the engagement of Cool Cosmos.

[29] The annexures were attached to show that the respondent was aware of the engagement of the suppliers and authorised the transactions contrary to the respondent's allegations. They serve to rebut the respondent's proposition that the applicant did not follow procedure, was not authorised to engage the suppliers and did not carry out any due diligence before engagement. The respondent's summons and declaration made generalised allegations about applicant's conduct. The details of the allegations are in the opposing affidavit. The applicant could only respond and give particulars of the engagements in detail after detailed allegations had been availed in the opposing affidavit. He had an entitlement to respond thereto and rebut the allegations.

[30] Whilst these documents were in the applicant's custody when the applicant deposed to the founding affidavit, he could not have made use of them and attached them to the founding affidavit without full knowledge of the allegations. The applicant had an entitlement to substantiate his defense and meet the sting of the respondent's opposition by attaching relevant documents to the

answering affidavit to confirm, vary or deny these allegations. The annexures do not introduce new evidence and instead serve to rebut allegations of improper dealings and provide further context concerning the respondent's version of events.

The legal principles governing rescission of default judgment

[31] Coming to the merits of the application, the overarching test in an application for rescission of judgment is whether the applicant has shown good and sufficient cause for rescission of judgment, see r 27 of the High Court Rules, 2021. In considering good and sufficient cause courts consider, the reasonableness of the applicant's explanation for the default, the *bona fides* of the application to rescind the judgment and the *bona fides* of the applicant's defense on the merits of the case and the prospects of success. See *Stockil* v *Griffiths 1992 (1) ZLR 172* (S) at 173*; Barclays Bank of Zimbabwe Ltd* v *CC International (Pvt) Ltd* S-16-86*(not reported); Songore* v *Olivine Industries (Pvt) Ltd 1988 (2)* ZLR 210 (S).

[32] These factors must be considered cumulatively, that is, in conjunction with each other. Nonetheless, the enquiry into the existence or otherwise of a *bona fide* defense is the cornerstone of this inquiry because the courts favor deciding matters on their merits rather than on technicalities. Where the default was willful, courts scrutinize the defense more strictly. A strong defense may lead to a court being amenable to allowing the application even in the case of a weak explanation for the default, see *Dupreez* v *Hughes N O* 1957 R & N 706 (SR); *Deweras Farm (Pvt) Ltd & Ors* v *Zimbabwe Banking Corp Ltd* 1998 (1) ZLR 368 (SC).

[33] As regards the approach to assessing the *bona fides* of the applicant's defense on the merits of the case, the court must consider whether the defense the applicant raises carries some prospect of success. This in no way entails the court determining the ultimate success of the applicant's defense, its role being confined to establishing if triable issues exist between the parties. The role of the court in an application for rescission of judgment is limited to defining whether the applicant has an arguable case. Courts avoid making credibility findings regarding the versions of the parties and attempt to resolve factual disputes between the parties which remains the function of the judge sitting to resolve the main matter should rescission of judgment be allowed. At this stage of

proceedings, the central question is, if these facts are later proven, would the defendant win his case?

[34] An applicant is not required to prove his or her or its case on a balance of probabilities, but to set out facts which if established at trial would entitle him or her or it to the relief sought. The applicant must disclose facts upon which the defense is based which facts must be legally sustainable. If the facts do not constitute a valid defense under the law, the inescapable result is a finding of lack of a *bona fide* defense. In addition to the requirement to proffer a reasonable explanation for the default and a *bona fide* defense, the court is required to assess whether the application has been filed merely to delay the inevitable and if the applicant has a genuine desire to contest the matter.

Analysis of the explanation for default

[35] I now consider whether the applicant proffered a reasonable explanation for the default. The applicant's conduct does not reveal that he deliberately abstained from attending the case management meeting of 6 June 2025. His explanation is that he had prepared for the meeting with his legal practitioner and believed that he would be present to represent his interests. He had even bought him a ticket to travel from Zambia to attend the meeting. Although the case management meeting was to be held physically, he explained that he was made to believe that it would be virtual. There is no suggestion he was told otherwise. It does not appear that he was aware that he was required to attend together with his legal practitioner.

[36] When his legal practitioner failed to turn up for the case management meeting, the applicant sent an email to respondent's counsel advising of his failure to get hold of his legal practitioner and sought a postponement of the case management meeting. The legally required course to take when a litigant fails to attend court where an unavoidable situation arises is to request a deferment of the matter although this is normally done directly to the court. The applicant's act of alerting counsel for the respondent of his predicament is commendable. He provided an explanation for the non-appearance to respondent's counsel and requested a postponement which was brought to the attention of the court. Doing so shows that an applicant acknowledges the court's authority and appreciates that his or her or its absence requires an explanation and does not constitute an act of defiance or disrespect for the court. Whilst he did not alert respondent's counsel of the failure to

attend the PTC as before, it is not a procedural requirement that a defaulting party do so. In no way does this on its own suggest disrespect for the court.

[37] After failing to attend the case management meeting, the applicant states that he remained in active communication with his legal practitioner regarding progress of the matter. In addition, he says that at some stage he asked to be referred to another legal practitioner. On 21 July 2025, the applicant called his legal practitioner and set a date to meet with him. Afterwards, he held a meeting with him in preparation for the PTC and his legal practitioner kept promising to attend the PTC hearing. The applicant's conduct is not consistent with someone bend on not attending the PTC but someone who believed that his legal practitioner was diligently attending to the matter and would attend the PTC on his behalf.

[38] The applicant asserted that he only discovered on the day of hearing that his legal practitioner was facing disciplinary action. His discovery is based on rumour. He did not frame this as a hard fact. He did not have to prove the rumour or fish for documents of the said disciplinary action from the Law Society of Zimbabwe to prove it. The rumour regarding the disciplinary action amounts to background context explaining the applicant's state of mind on that day.

[39] The applicant's explanation for the failure to find an alternative legal practitioner is reasonable when one has regards to the background to this matter. The applicant kept trying to reach out to his erstwhile legal practitioner and was assured that he would attend and represent him at the PTC. A litigant has no reason to find alternative representation where his current legal practitioner actively undertakes to represent him and attend hearings on his behalf.

[40] The applicant averred that when he met his legal practitioner, he was advised that the PTC was going to be held online and that it was not necessary for him to travel to Harare for the hearing. He says that he was not linked to the case and relied on his legal practitioner for information about the case. This explains why he would not have realised the true nature of the hearing. He laboured under the mistaken view that the hearing was online.

[41] The applicant seemed prepared to participate at PTC and after filing to get hold of his erstwhile legal practitioner, he sought logging in details on the morning of the hearing which were sent to him at 8 am. By the time he discovered that his legal practitioner was under probe, it was already too late to get verified on the IECMS, log in personally or engage the services of another legal practitioner.

He reports having problems logging onto the system. Even if he had managed to attend the physical hearing in order to take part in the hearing, there would have been need for him to request to be linked to the case and log onto the IECMS to enable him to access the pleadings. It is evident that litigants seldom struggle to navigate the IECMS and this cannot be used against them. Consideration must be given to the fact that the applicant was genuinely unaware that the hearing was to be conducted physically and encountered difficulties when he tried to log onto the system.

[42] The applicant did not file PTC papers beforehand as expected. The blame for this lies squarely on the applicant's legal practitioner who did not file the papers as expected and attend the PTC resulting in the default. However, the contention that the respondent will suffer prejudice if rescission is granted because no PTC papers were filed by the applicant and that no discovery was made and that it could have appreciated the nature of the applicant's defense and the evidence relied on if he had done so, does not find favor with the court. For the purposes of an application for rescission of judgment, the applicant's defense must in addition to being pleaded, be clear from the pleadings. There is no requirement that it be shown that the defaulting party had filed all the pleadings in accordance with the rules. Should the court rescind this judgment, all necessary stages of pleadings and filing of documents will be required to be done in terms of the rules. There is no prejudice to talk about.

[43] The explanation for the default attributes the default to the applicant's legal practitioner. No doubt the applicant's erstwhile legal practitioner failed to take steps to protect the applicant's rights. The applicant was required to file a supporting affidavit from his erstwhile legal practitioner explaining the reason why he and the applicant failed to attend the hearing, see *Beitbridge Rural District Counsel* v *Russell Construction Co* 1998 (2) ZLR 190(S). Where a legal practitioner proffers a reasonable explanation for a default, the party stands to benefit from it. Non-compliance with the rules by a party's legal practitioner is treated as non-compliance by the party. The sins of the legal practitioner are visited on the client. This principle was articulated in *Soloojee & Anor* v *Minister of Community Development* 1965(2) SA 135(AD), as follows:

> "There is a limit beyond which a litigant cannot escape the result of his attorney's lack of diligence or the insufficiency of the explanation tendered. To hold otherwise , might have a disastrous effect upon the observance of the rules of this court. Considerations *ad misericodiam* should not be allowed to become an invitation to laxity. In fact, this court has lately been burdened with an undue and increasing number of applications for condonation in which the

> failure to comply with the rules of the court was due to neglect on the party of the attorney. The attorney, after all, is the representative whom the litigant has chosen for himself, and there is little reason why, in regard to condonation of a failure to comply with a rule of court , the litigant should be absolved from the normal consequences of such a relationship, no matter what the circumstances of the failure are…."

[44] Whilst courts have repeatedly held that where the cause of a default is attributable to a legal practitioner, an affidavit from him or her explaining the reasons for the default, should be availed. There should be exception where the legal practitioner is not cooperative or for any other reason he or she is unable to explain the default. The applicant was required to explain in his founding affidavit the reason why he did not file a supporting affidavit from Mr Mpofu. The shortcoming with this explanation is that there is no explanation for the default from the applicant's erstwhile legal practitioner. The applicant did not explain why he did not obtain a supporting affidavit from him. The failure to proffer an explanation on the part of the applicant's erstwhile legal practitioner makes the explanation for the default weak and unreasonable.

[45] The applicant became aware of the default order on 5 August 2025 and filed this application on 27 August 2025. He acted promptly upon becoming aware of the judgment by taking active steps to address the default and filed this application within a month of the default. The applicant's conduct demonstrates a *bona fide* intention to defend the matter and have his day in court.

Does the applicant have a good defence on the merits

[46] I now turn to consider whether the applicant has a *bona fide* defence to the respondent's claim. The nub of the respondent's case is that the applicant engaged suppliers without its knowledge, authorisation and failed to follow proper procedures for procurement of merchandise. The applicant's defence rests on contentions that the transactions were done with the knowledge of the respondent, in accordance with laid down procedure and were authorised. He argued that the respondent failed to detail the procedures the applicant was required to follow which he outlined. He maintained that his responsibility as buyer was to identify suppliers, motivate why the respondent should do business with them and his manager, merchandise executive, chain director and chief financial officer would approve them and add them to their data base. In addition, that all payments were authorized by senior management not him after which he would submit invoices that needed to be paid which would be signed off by the merchandise executive with only invoices bearing his

signature being paid by the finance department. He denied authorising payment to unknown entities contending that there was systemic oversight as an update of the status of all import orders was done on a weekly basis and weekly shipping reports flagged overdue orders. He argued that in terms of the procedure outlined, the whole team was involved in sourcing suppliers from the beginning and that there were check and balance mechanisms, arguing that the respondent's officials became aware of the transactions entered into with the two suppliers and approved them, suggesting that if there was an anomaly along the way, the respondent would have picked it up.

[47] In support of his contentions, he attached an extract of an agreement signed with Turkza to show that "every level of the Jet Chain signed off on the pack" from the outset and that the respondent was aware of the transactions and approved them. The emails by respondent's merchandise executive were annexed to show that the respondent acknowledged that it was aware of the transactions and approved them. One of the emails was attached to show that the respondent acknowledged that it had orders with Cool Cosmos and that it was late in payment. In one email, there is a suggestion that it granted Cool Cosmos authority to use the inhouse brand for Turkza. An email by Mr Mnyama was attached to show that he requested for expediency of the registration of Turkza. An invoice for Cool Cosmos which Mr Mnyama signed for was also annexed. The applicant submitted that the respondent received more than two thirds of the goods sourced which it sold. There is a suggestion that the respondent received some of the goods ordered from the two entities and resold them.

[48] The two standpoints reveal triable issues between the parties' versions, the key question being whether the respondent's officials were involved in these transactions and approved them. I am satisfied that the applicant's version suggests that he has an arguable case which deserves to be ventilated in a full trial. If the facts as averred are later proven, the applicant could win his case.

Disposition

[49] Although the applicant failed to give a convincing and reasonable explanation for the default, there still exists good and sufficient cause to grant rescission of judgment. The applicant demonstrated that he has a strong and arguable defense that carries strong prospects of success. Considering all factors cumulatively, this case deserves to be fully ventilated in a full trial. Resultantly, the applicant has shown good and sufficient cause for rescission of judgment.

Accordingly, it is ordered as follows:

1. The application for rescission of the default judgment granted under case number HCH2703/24 on 28 July 2025 be and is hereby granted.
2. Costs shall be in the cause.

Tanaka Law Chambers, applicant's legal practitioners
Gill, Godlonton & Gerrans, respondent's legal practitioners